



January 6, 2026

HOUSE BILL No. 1058

DIGEST OF HB 1058 (Updated January 6, 2026 9:30 am - DI 116)

Citations Affected: IC 36-4.

Synopsis: Annexation. Provides that annexation territory that is divided by railroad tracks satisfies contiguity requirements, if the territory on at least one side of the railroad tracks is contiguous to the municipality.

Effective: July 1, 2026.

Steuerwald, Meltzer

December 5, 2025, read first time and referred to Committee on Local Government.
January 6, 2026, amended, reported — Do Pass.

HB 1058—LS 6421/DI 87



January 6, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1058

A BILL FOR AN ACT to amend the Indiana Code concerning local government.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 36-4-3-3.7 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]: **Sec. 3.7. (a) Notwithstanding any other provision of this**
4 **chapter, if a proposed annexation territory consists of:**
5 **(1) land that:**
6 **(A) is contiguous to the municipality under section 1.5 of**
7 **this chapter; and**
8 **(B) abuts, at least in part, one (1) side of the railroad tracks**
9 **and railroad right-of-way; and**
10 **(2) land:**
11 **(A) that is not contiguous to the municipality under section**
12 **1.5 of this chapter; and**
13 **(B) that:**
14 **(i) is separated from the land under subdivision (1) by;**
15 **and**
16 **(ii) abuts, at least in part, the opposite side of;**
17 **the railroad tracks and railroad right-of-way described in**

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1 subdivision (1)(B);
2 the proposed annexation territory satisfies the contiguity
3 requirements under section 1.5 of this chapter. The annexing
4 municipality is not required to obtain the consent of any person
5 owning, leasing, operating, or using the railroad tracks or railroad
6 right-of-way to annex the proposed territory.
7 (b) Nothing in this section authorizes the municipality to annex
8 the railroad tracks and railroad right-of-way abutting the
9 annexation territory.



COMMITTEE REPORT

Mr. Speaker: Your Committee on Local Government, to which was referred House Bill 1058, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 1, line 3, delete "(a) This section applies to an annexation, if the".

Page 1, delete lines 4 through 8.

Page 1, line 9, delete "(c)" and insert "(a)".

Page 2, line 13, delete "(d)" and insert "(b)".

Page 2, line 14, delete "railroad right-of way." and insert "**railroad tracks and railroad right-of-way abutting the annexation territory.**".

and when so amended that said bill do pass.

(Reference is to HB 1058 as introduced.)

MAY

Committee Vote: yeas 11, nays 0.

